

Court No. - 5

Case :- WRIT - C No. - 11270 of 2021

Petitioner :- M/S Jai Krishna Cold Storage Pvt. Limited And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vineet Kumar Singh, Hari Narain Singh (Senior Adv.)

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Saral Srivastava, J.

Heard Sri V.K.Singh, learned counsel for the petitioners, learned Standing Counsel appearing for the State-respondents and Sri Ashutosh Chaturvedi, Advocate holding brief of Sri Baleshwar Chaturvedi, learned counsel appearing for the respondents-Electricity Authority.

Considering the nature of the order being passed in the writ petition, learned counsel appearing for respondents-Electricity does not propose to file counter affidavit.

The petitioners being aggrieved by undated assessment orders based on checking report dated 12.8.2017 raising a demand of Rs. 43,94,819/- against the petitioners, preferred statutory appeal under Section 127 of Uttar Pradesh Electricity Supply Code, 2003 (in short the Code), which has been numbered as Computerized Case No. C201803000002325. The appeal has been dismissed vide order dated 9.2.2021, which is impugned in the present petition.

Challenge by the petitioners to the impugned order has been made on the ground that the order is non speaking and without application of mind, inasmuch as, it does not consider the case of the petitioners.

Learned counsel for the petitioners submits that in the memo of appeal, which is enclosed as Annexure-7 to the writ petition, various grounds have been taken by the petitioners against the consumption of illegal electricity raised by the said assessment order. Accordingly, he submits that none of the grounds, raised by the petitioners in the memo of appeal, has been considered by the appellate authority while dismissing the appeal of

the petitioners.

Learned counsel for the respondents has defended the order passed by the appellate authority but could not point out from the order that the appellate authority has given due consideration to the grounds raised by the petitioners in the memo of appeal.

In view of the facts and circumstances of the case, this Court finds that the impugned order is non speaking order and without application of mind. Accordingly, the order of the appellate authority is not sustainable in the eye of law and as such, it is set-aside with the liberty to the appellate authority to decide the appeal afresh, after giving due opportunity to the petitioners, in accordance with law, as expeditiously as possible, preferably within a period of three months from the date of production of a copy of this order downloaded from the official website of the Allahabad High Court.

Subject to the aforesaid, the writ petition is allowed. However, there shall be no order as to costs.

Order Date :- 16.6.2021
SKM